

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL MISCELLANEOUS JURISIDITION)

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

Criminal Miscellaneous Case No. 66345 of 2023

Mahmudul Hoque

.... Accused-Petitioner

-Versus-

The State

.... Opposite Party

Mr. Md. Shafiqul Islam, Advocate

.... For the petitioner.

Mr. Sujit Chatterjee, D.A.G.with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Heard and Judgment on 28.02.2024

S M Kuddus Zaman, J:

On an application under section 498 of the Code of Criminal Procedure this Rule was issued calling upon the opposite party to show cause as to why the accused petitioner should not be enlarged on bail in S.T. Case No. 339 of 2022 arising out of Cox's Bazar Sadar Model Police Station Case No. 21 dated 08.12.2020 corresponding to G.R. Case No. 918 of 2020 (Cox's Bazar Sadar) G.R. Case No. 172 of 2021 (English) under Sections 302/34 of the Penal Code, 1860, now pending in the Court of learned Additional

Sessions Judge, Court No. 03, Cox's Bazar and/or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that the FIR of this case was lodged by the father of victim Md. Nasir alleging that on 06.12.2020 at 4.00 pm accused petitioner Mahmudul Hoque and other co-accused persons committed murder of his son Md. Nasir by striking Dagger blow on his chest.

Mr. Md. Shafiqul Islam, learned Advocate for the petitioner submits that the accused petitioner voluntarily surrendered in this case on 26.12.2021. Co-accused Nurul Afser and Kashem Uddin made two separate confession under section 164 of the Code of Criminal Procedure but both of them have been granted bail by this Court. The petitioner did not make any confession.

Mr. Sujit Chatterjee, learned Deputy Attorney General raises objection in granting bail at this point of time.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

It turns out from the record that the name of the petitioner stands at serial No. 1 of the FIR but he voluntarily surrendered in this case on 26.12.2021. The petitioner did not make any confession. Co-accused Nurul Afser and Kashem Uddin made two separate confession under section 164 of the Code of Criminal Procedure but both of them have been granted bail. In this case charge was framed on 28.02.2022 but not a single prosecution witness has yet been examined.

On consideration of above materials on record, we are inclined to grant bail of the petitioner.

In the result, the Rule is made absolute.

Let the accused-petitioner namely Mahmudul Hoque, son of late Hasan be enlarged on bail subject to furnishing bail bond to the satisfaction of the learned Additional Sessions Judge, Court No. 03, Cox's Bazar.

The learned Judge of the Court below is at liberty to cancel the bail of the accused-petitioner if he misuses the privilege of bail in any manner whatsoever.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.